

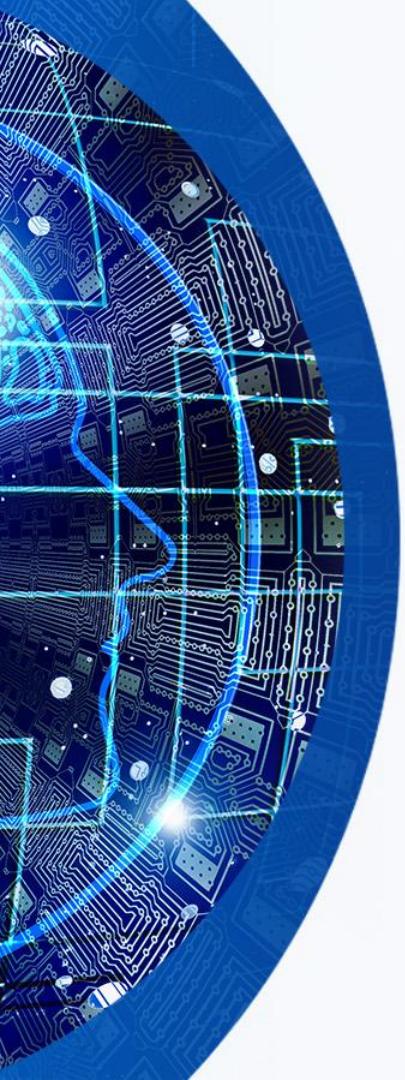
Lecture 3 – Intellectual Property



Learning Objectives

After the completion of the chapter, the students will be able to:

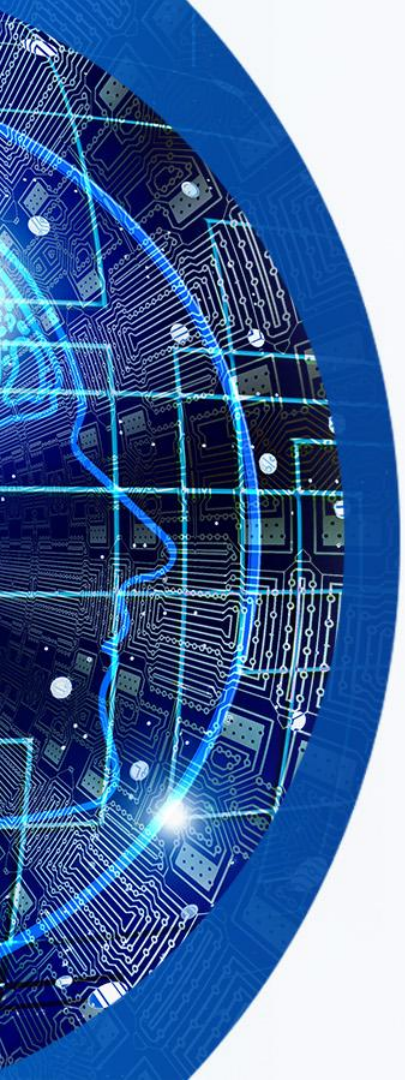
- explain the term intellectual property” and discuss the measures that organizations take to protect their intellectual property;
- differentiate the forms of intellectual property and its applications.



Intellectual Property (IP)

- system relates to rights and obligations, as well as privileges and incentives–all rooted from the creation and protection of IP, which “refers to creations of the mind: inventions; literary and artistic works; and symbols, names, and images used in commerce.”

- IP rights as basic human rights involve “the right to benefit from the protection of moral and material interests resulting from authorship of scientific, literary, or artistic productions.”



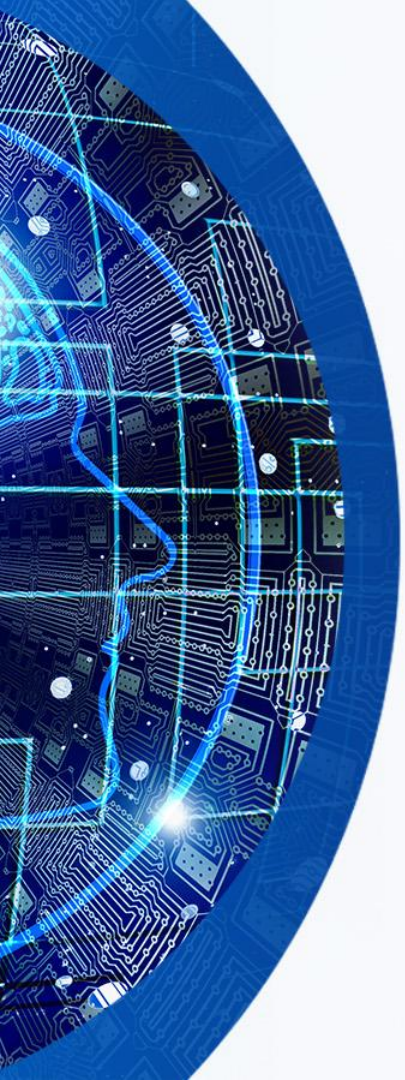
Why Promote and Protect IP?

First, the progress and well-being of humanity rest on its capacity to create and invent new works in the areas of technology and culture.

Second, the legal protection of new creations encourages the commitment of additional resources for further innovation.

Third, the promotion and protection of intellectual property spurs economic growth, creates new jobs and industries, and enhances the quality and enjoyment of life

- WIPO Publication 450



IPOPHL Mandate and Function

The Intellectual Property Office of the Philippines (IPOPHL) is the government agency mandated to administer and implement State policies on intellectual property (IP) to strengthen the protection of IP rights in the country.

***D**evelopment-Oriented*

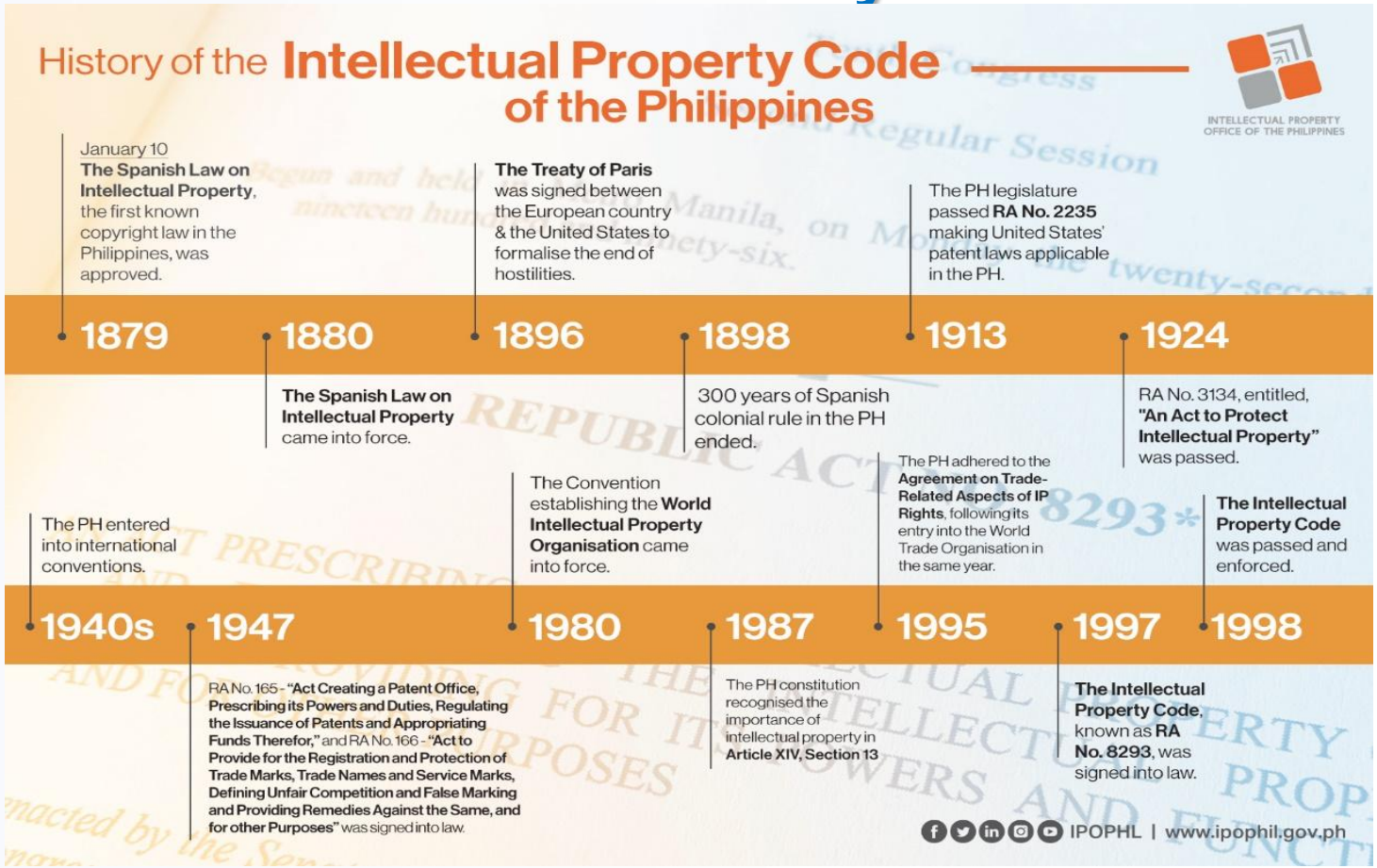
***R**egulatory*

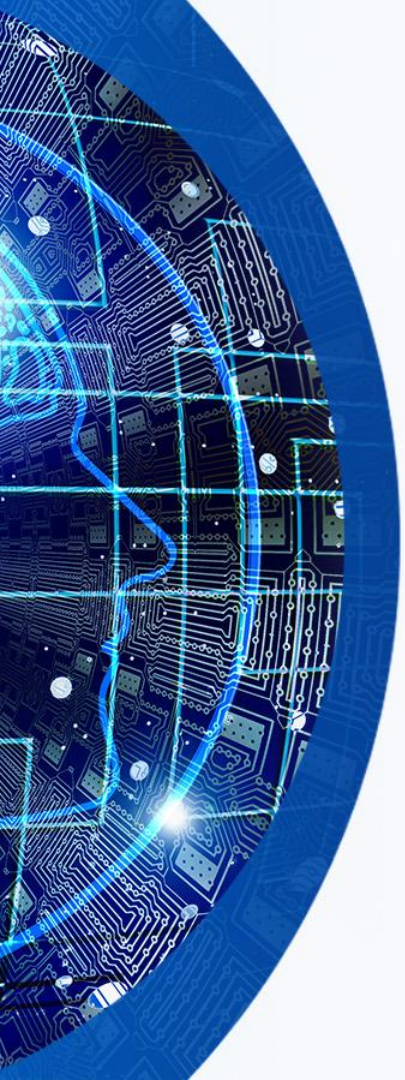
***E**nforcement*

***A**djudicatory*

*Policy-**M**aking*

History of IPOPHL



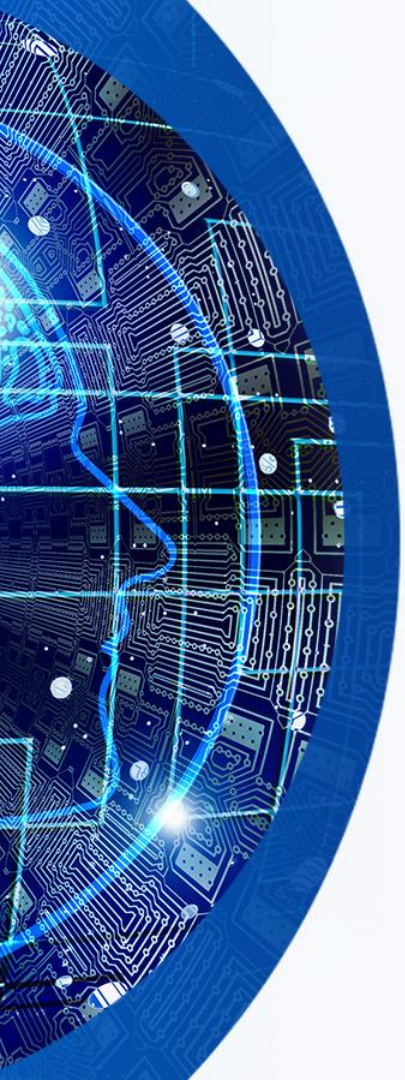


IPOPHL Vision

A progressive Philippines using intellectual property assets for inclusive economic and social development by 2030.

IPOPHL Mission

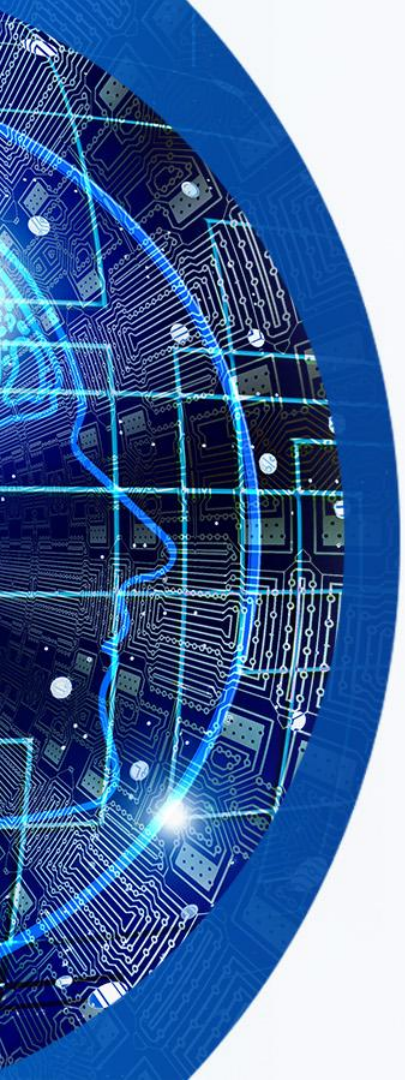
We commit to build an inclusive intellectual property system serving the needs of Filipinos.



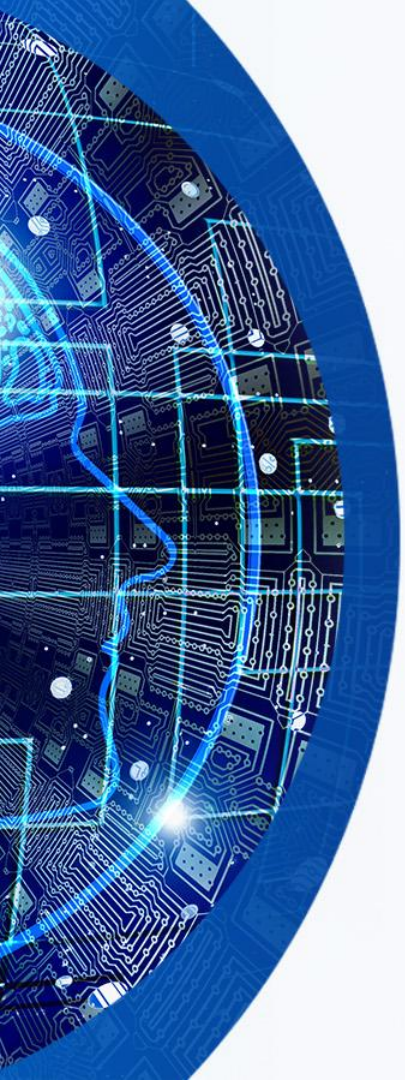
IPOPHL Values

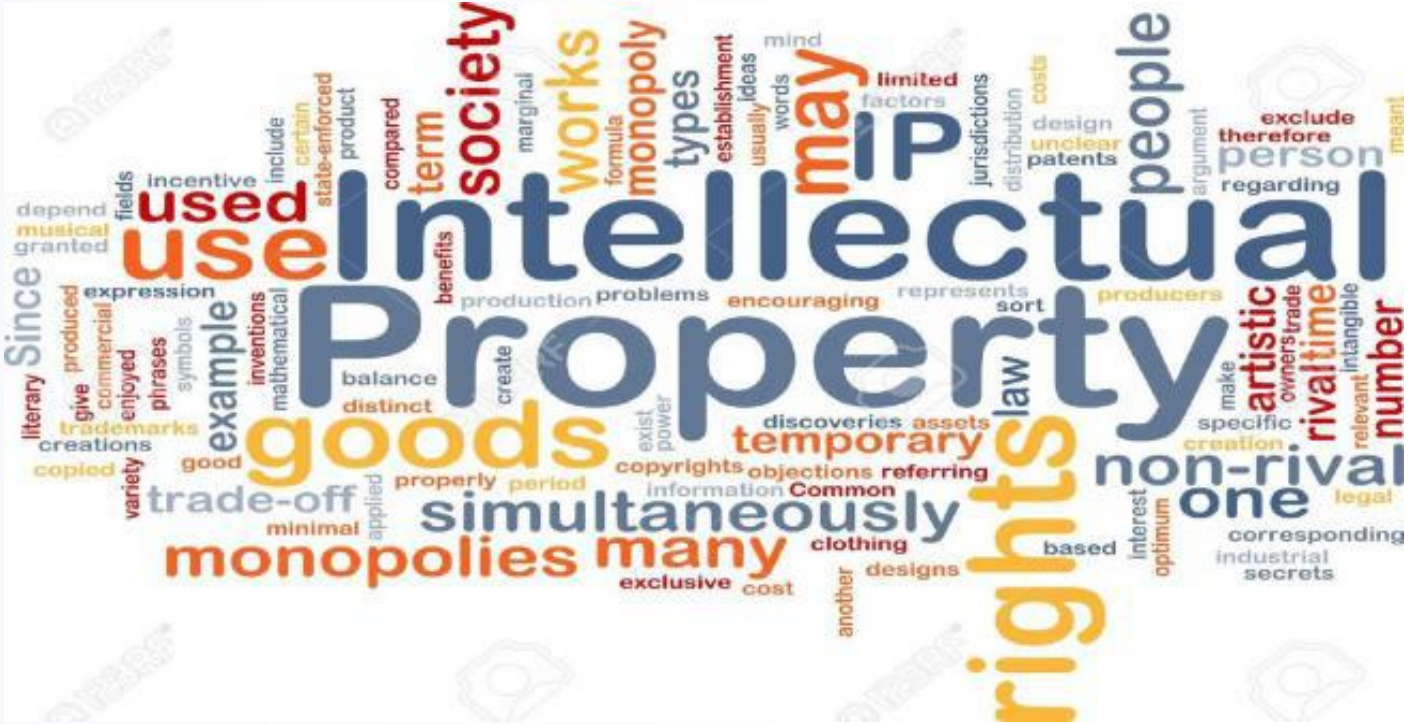
- Justness
- Harmony and Teamwork
- Accountability
- Integrity
- Excellence

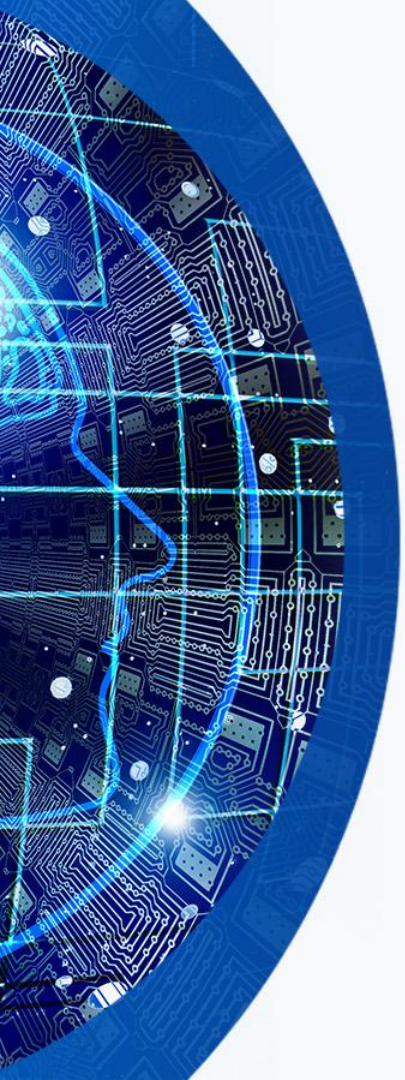
IPOPHL Logo



INTELLECTUAL PROPERTY
OFFICE OF THE PHILIPPINES




Intellectual
Property
IP
rights
goods
use
used
may
works
society
people
monopolies
simultaneously
many
non-rival
one
example
trade-off
temporary
Since
term
monopoly
types
limited
person
artistic
rivaltime
number
incentive
expression
trademarks
creations
copyrights
objections
referring
Common
information
discoveries
assets
specific
creation
corresponding
industrial
secrets
legal
based
clothing
designs
exclusive
cost
another
minimal
applied
properly
period
good
copied
variety
produced
commercial
enjoyed
phrases
symbols
inventions
mathematical
literary
give
balance
distinct
create
production
problems
encouraging
represents
producers
sort
benefits
compared
product
state-enforced
certain
include
fields
depend
musical
granted
marginal
formula
establishment
usually
ideas
words
mind
factors
jurisdictions
distribution
costs
design
unclear
patents
argument
exclude
therefore
regarding
meant
owners
trade
make
intangible
relevant
interest
optimum
exist
power



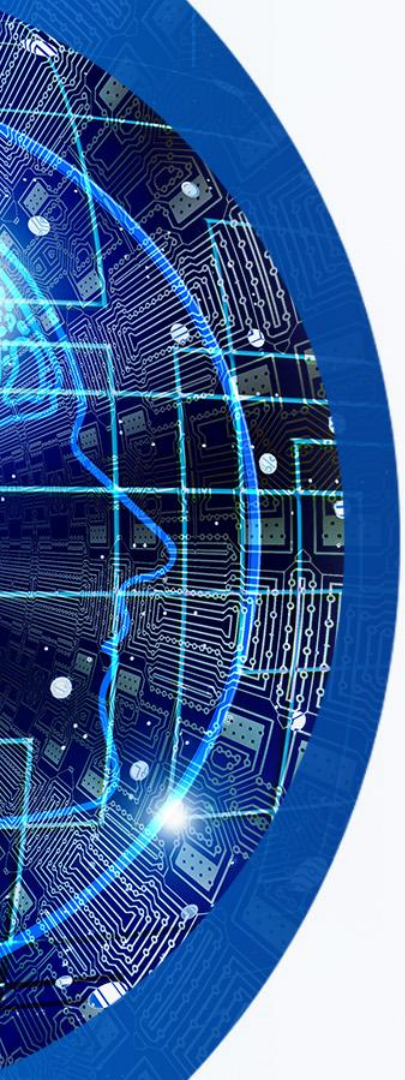


- Protection for your creations
- Promotion of company / products / inventors
- Competitive edge / (keeping) ahead of the competition
- Share in economic and technological development
- Better reasons (inspired) to improve or innovate
- Financial reward

Patent

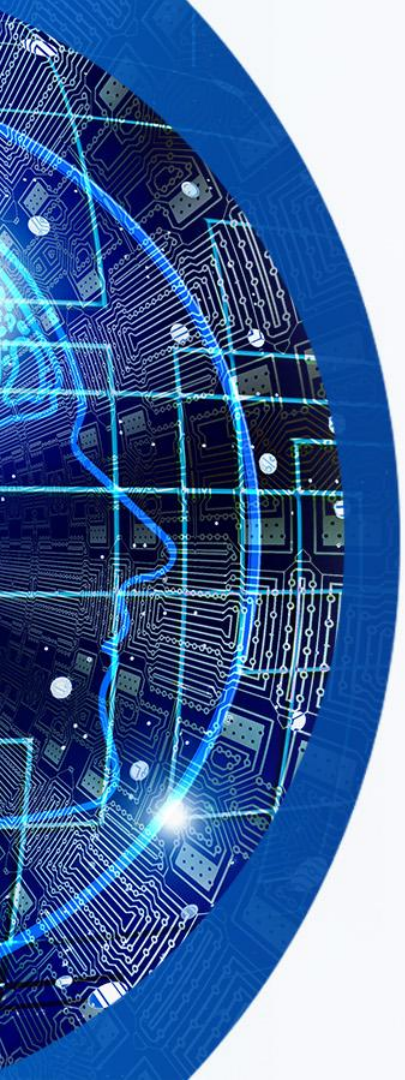
- an exclusive right granted to the owner by government for a period of time in exchange of the full disclosure of their invention
- 3 Basic Requirements of Patentability (NEW, INVENTIVE and INDUSTRIALLY APPLICABLE)





Exclusive Right

- *Product* - to restrain, prohibit and prevent any unauthorized person or entity from making, using, offering for sale, selling or importing that product
- *Process* - to restrain, prevent or prohibit any unauthorized person or entity from using the process, and from manufacturing, dealing in, using, selling or offering for sale, or importing any product obtained directly or indirectly from such process.



Who grants patents?

IPOPHL is the government agency in charged with the implementation of the law protecting intellectual property rights in the Philippines as provided for under R.A. 8293, or the Intellectual Property Code of the Philippines.

Who own a patent?



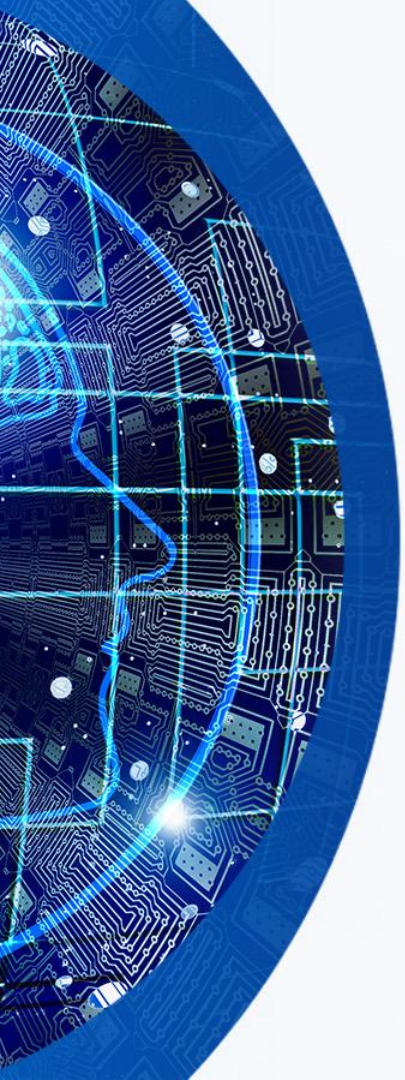
The owner of a patent is **not** necessarily the inventor.

Invention is the subject matter of a patent







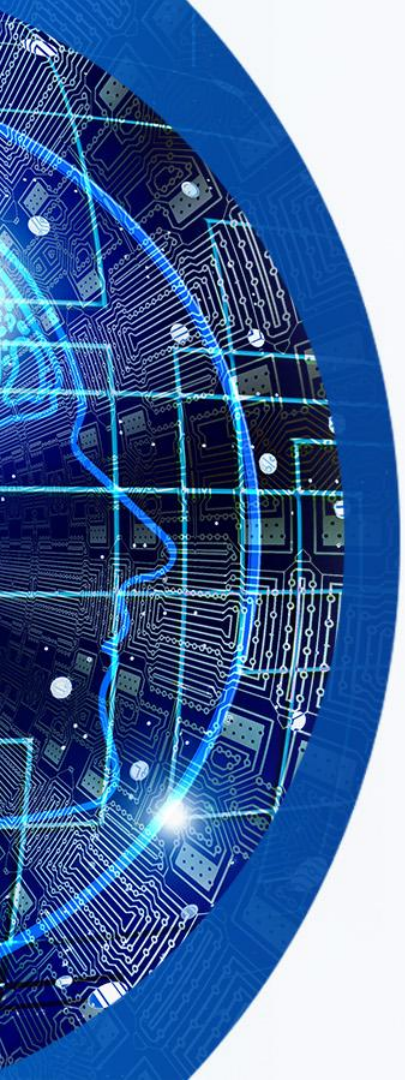


What kind of inventions can be granted a patent?

It must be a *technical solution to a problem* in any field of human activity which is *new, involves an inventive step* and *is industrially applicable*.

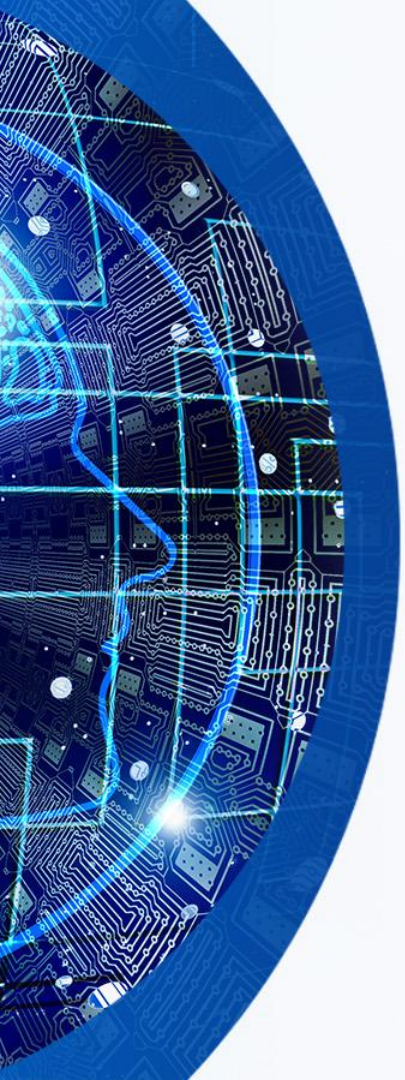
Statutory Classes of Invention

- Product
- Process
- Improvement of any foregoing



Non-patented subject matter

1. Discoveries, scientific theories mathematical methods
2. Schemes, rules, and methods of performing mental acts and playing game
3. Methods for treatment of human or animal body
4. Abstract ideas or theories
5. Aesthetic creations
6. Plant varieties of animal breeds or essentially biological process for the production of plants and animals
7. Programs for computers
8. Anything which is contrary to public order, health, welfare or morality

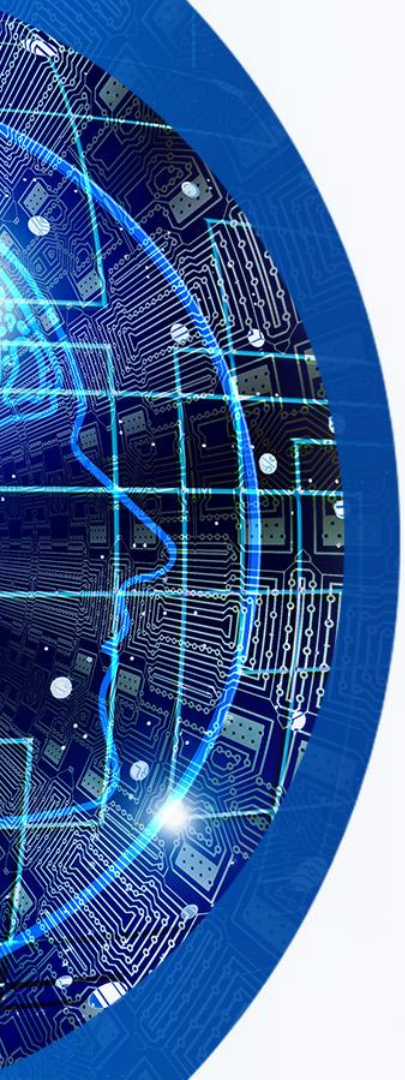


Benefit of Patent

A patent is an exclusive right that allows the inventor to exclude others from making, using, or selling the product of his invention during the life of the patent. Patent owners may also give permission to, or license, other parties to use their inventions on mutually agreed terms. Owners may also sell their invention rights to someone else, who then becomes the new owner of the patent.

Eligibility of Patent

The Intellectual Property Code of the Philippines sets three conditions for an invention to be deemed patentable: it has to be new, involves an inventive step, and industrially applicable.

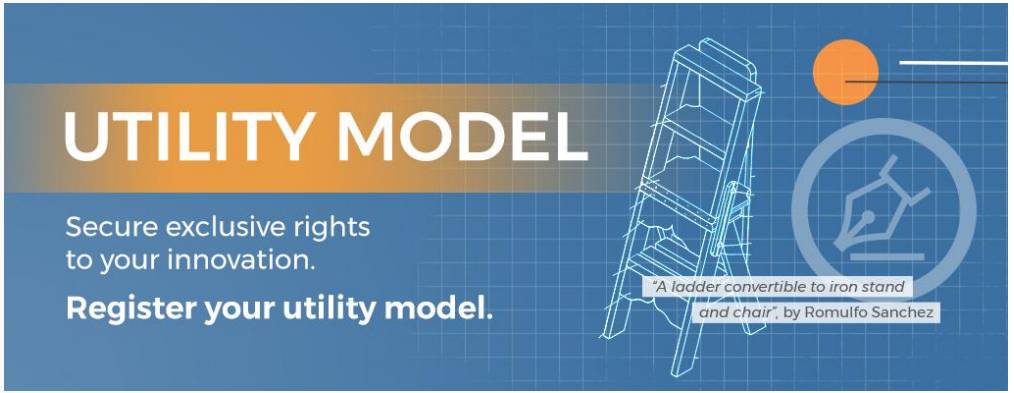


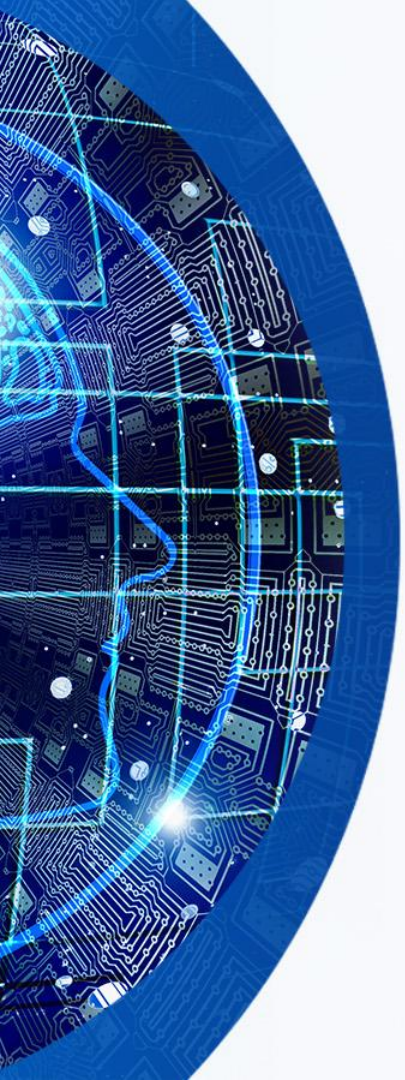
Term and Protection of Patent

The term of a patent shall be twenty (20) years from the filing date of the application without any possibility of renewal. The patent must be maintained yearly, starting from the 5th year. Patents are territorial, You are only protected in countries where you applied for patent protection.

Utility Model

- a protection option to protect innovations that are not sufficiently inventive to meet the inventive threshold required for standard patents application
- provides protection of so-called “minor inventions” through a system similar to the patent system



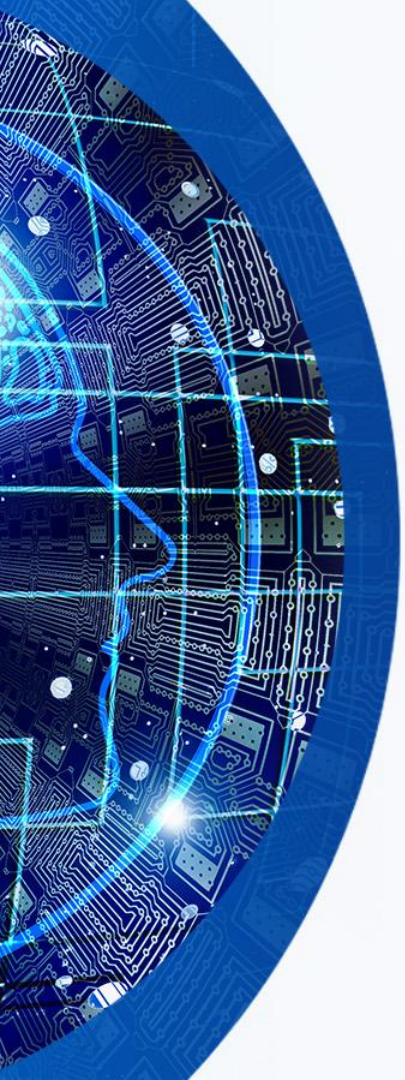


What kind of protection does a Utility Model offer?

An owner of a utility model obtains the exclusive right to prevent or stop others from commercially exploiting the utility model for a limited period.

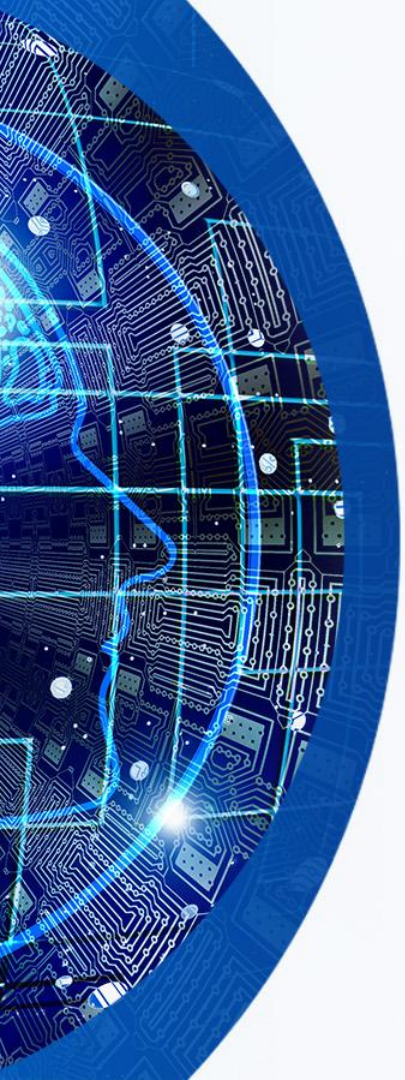
Statutory Classes of Registrable Utility Model (Rule 201)

1. Product
2. Process
3. Computer-related utility model
4. Improvement of any of the foregoing



Benefits

A Utility Model (UM) allows the right holder to prevent others from commercially using the registered UM without his authorization, provided that the UM is new based on the Registrability Report. Compared with invention patents, it is relatively inexpensive, faster to obtain, and with less stringent patentability requirements.

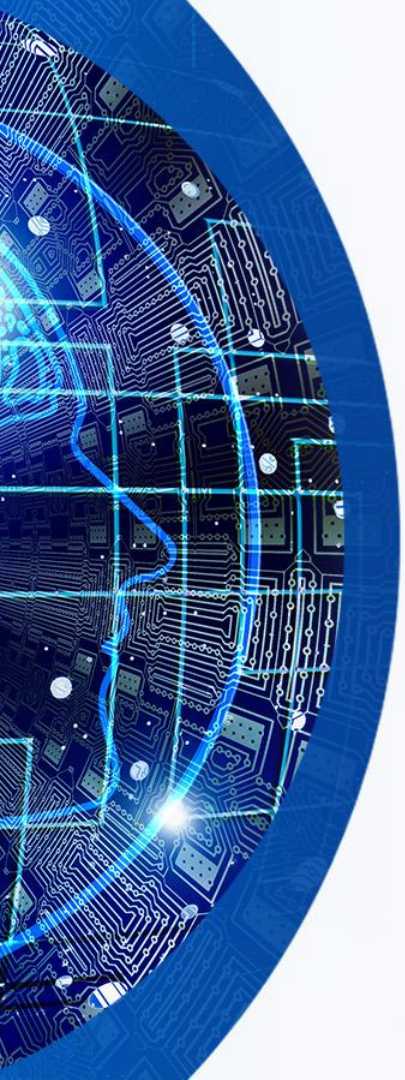


Eligibility

Any technical solution of a problem in any field of human activity which is new and industrially applicable shall be registrable.

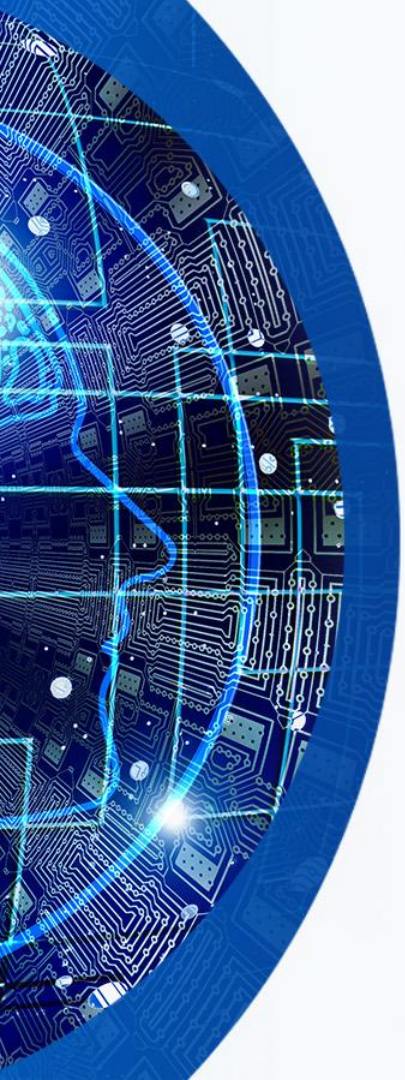
The provisions regarding “Non-Patentable Inventions” as provided for in Part 2, Rule 202 of the Regulations for Patents shall apply, mutatis mutandis (with things changed that should be changed), to non-registrable utility models:

1. Discoveries, scientific theories and mathematical methods;



Eligibility

2. Schemes, rules and methods of performing mental acts, playing games or doing business, and programs for computers;
3. Methods for treatment of the human or animal body by surgery or therapy and diagnostic methods practiced on the human or animal body. This provision shall not apply to products and composition for use in any of these methods;
4. Plant varieties or animal breeds or essentially biological process for the production of plants or animals. This provision shall not apply to micro-organisms and non-biological and microbiological processes.

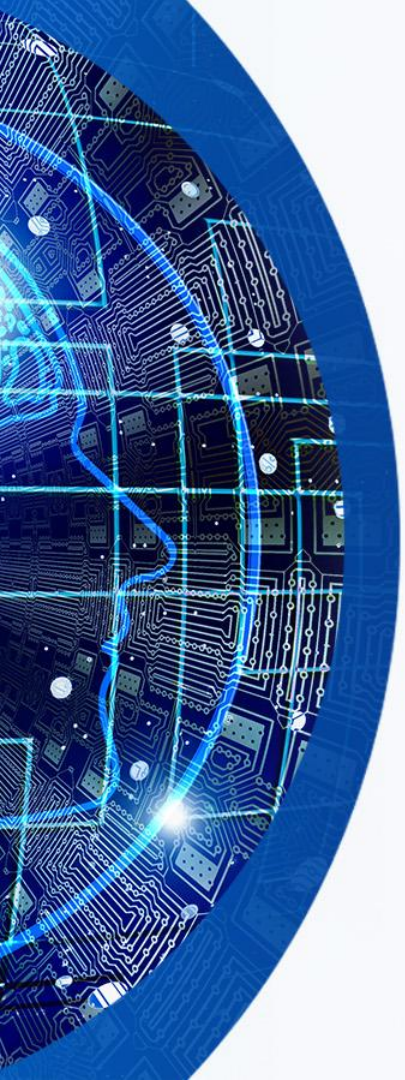


Eligibility

5. Provisions under this subsection shall not preclude Congress to consider the enactment of a law providing sui generis protection of plant varieties and animal breeds and a system of community intellectual rights protection:
6. Aesthetic creations; and
7. Anything which is contrary to public order or morality.

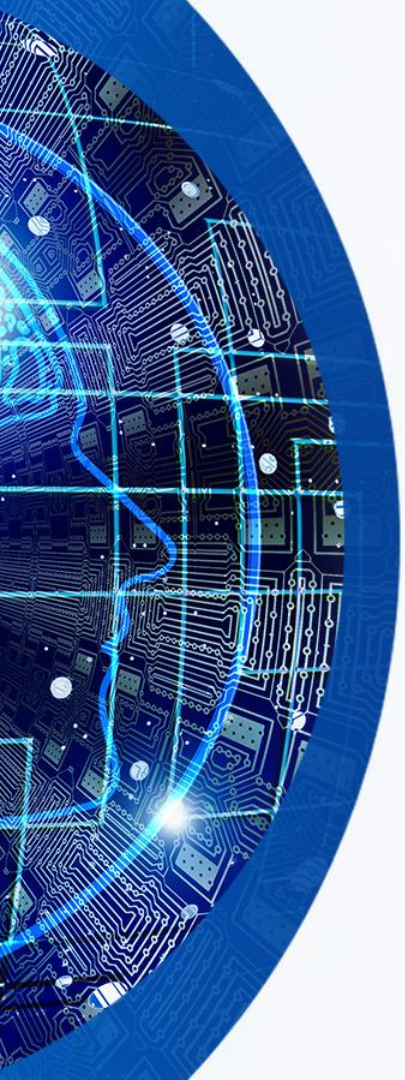
Term of Protection

A utility model is entitled to seven (7) years of protection from the date of filing, with no possibility of renewal. UMs are territorial. You are only protected in countries where you applied for patent protection.



Patents vs Utility Models

Patents	Utility Models
• requires inventive step • 20 years from filing date • with substantive examination • applications published with search report after 18 months • can be enforced after grant	• no inventive step • 7 years from filing date • no substantive examination • published for 30 days prior to issuance of certificate • enforcement is determined by Registrability Report



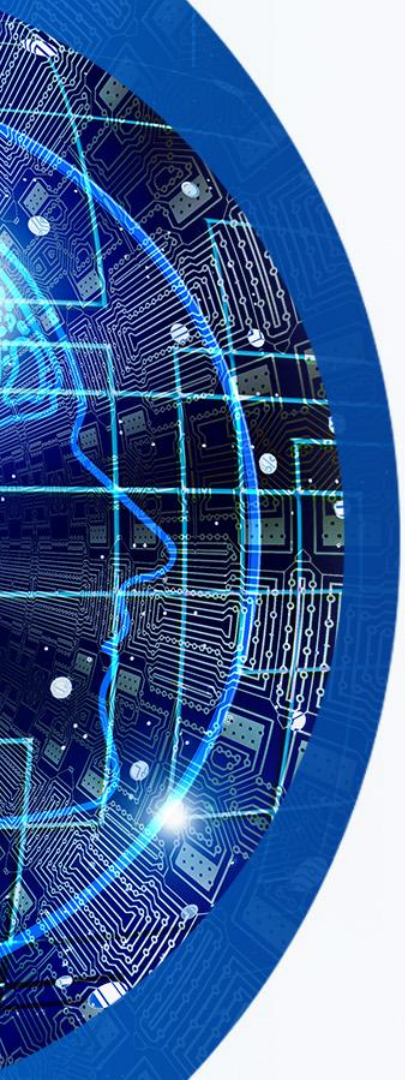
Registrability Report

- a document showing the validity of the registration.
- shows the relevant prior art documents related to your UM application
- shows whether your UM is new or not
- if new, then, UM can be enforced by presenting your UM registration certificate together with the registrability report.

Industrial Design

- ornamental or aesthetic aspect of an article.
- design, in this sense, may be three-dimensional features (shape or surface of an article), or the two-dimensional features (patterns or lines of color).



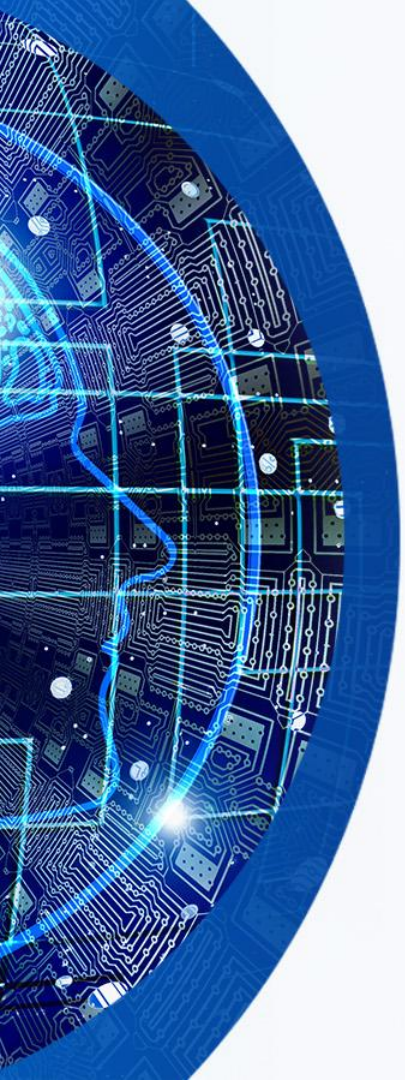


What conditions must be met to obtain industrial design protection?

- New or original
- Article of manufacture
- Not dictated by technical or functional considerations
- Not contrary to public order, health and morals

Benefits

The owner of a registered industrial design has the right to prevent third parties from making, selling or importing articles bearing or embodying a design which is a copy, or substantially a copy, of the protected design, when such acts are undertaken for commercial purposes.

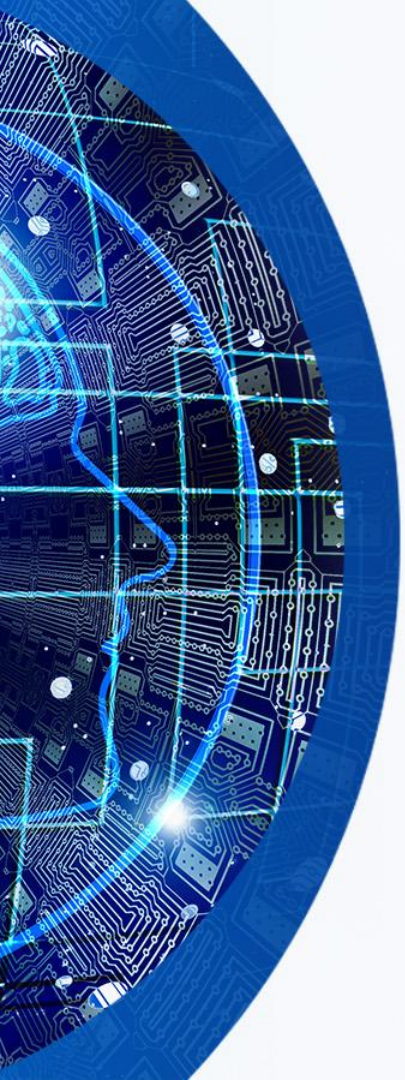


Eligibility

In order to be registrable, an industrial design must be a new or original creation.

The following industrial designs shall not be registrable:

- Industrial designs that are dictated essentially by technical or functional considerations to obtain a technical result;
- Industrial designs which are mere schemes of surface ornamentations existing separately from the industrial product or handicraft; and
- Industrial designs which are contrary to public order, health, or morals



Term of Protection

The registration for an industrial design is for a period of 5 years from the filing date of the application. The registration of an industrial design may be renewed for not more than two (2) consecutive periods of five (5) years each by paying a renewal fee. The fee should be paid within a year of the expiration of the registration.

Samples of ID











Trademark

- is a word, a group of words, sign, name, symbol, logo or a combination thereof that identifies and differentiates the source of the goods or services of one entity from those of others



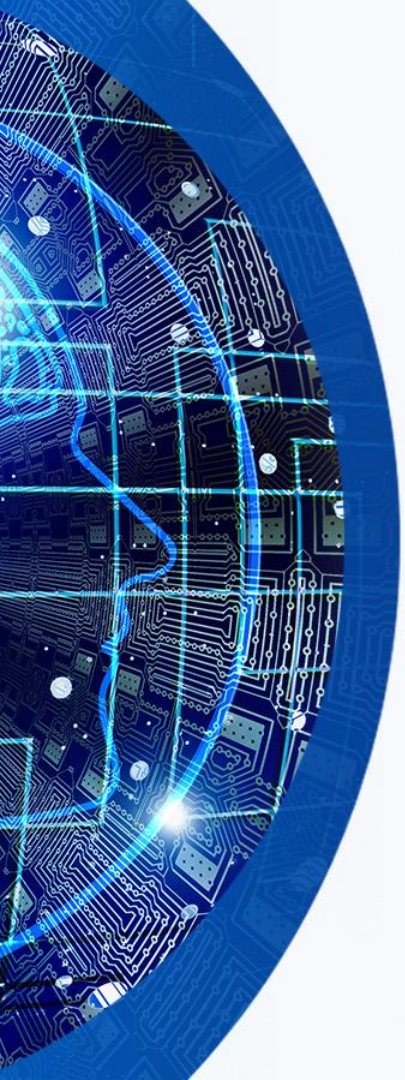
Functions of Trademark

- Source identifier and differentiator
- Quality indicator and advertisement

Types of Marks (according to composition)

• **Word**	NIKE
• **Symbol**	
• **Phrase**	JUST DO IT
• **Combination**	

Types of Marks (according to strength)



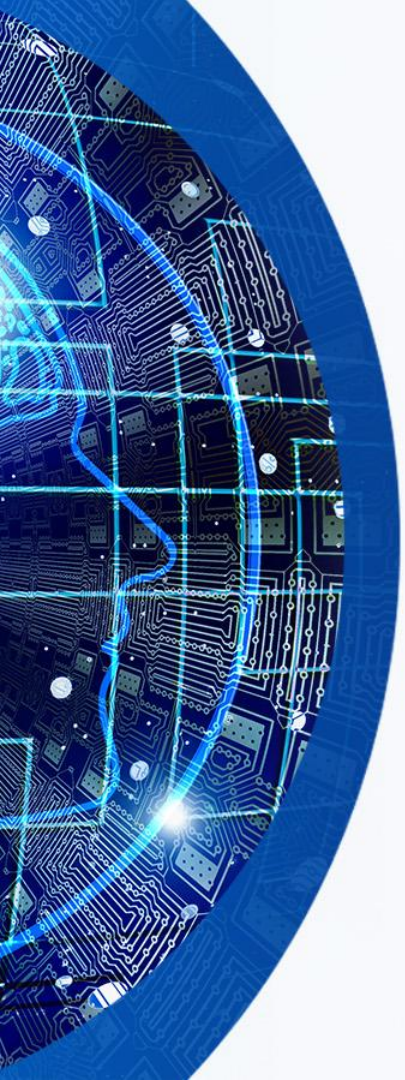
Fanciful
Made up of words

Arbitrary
word/image unrelated to goods/services

Suggestive
requires consumers to connect product with mark

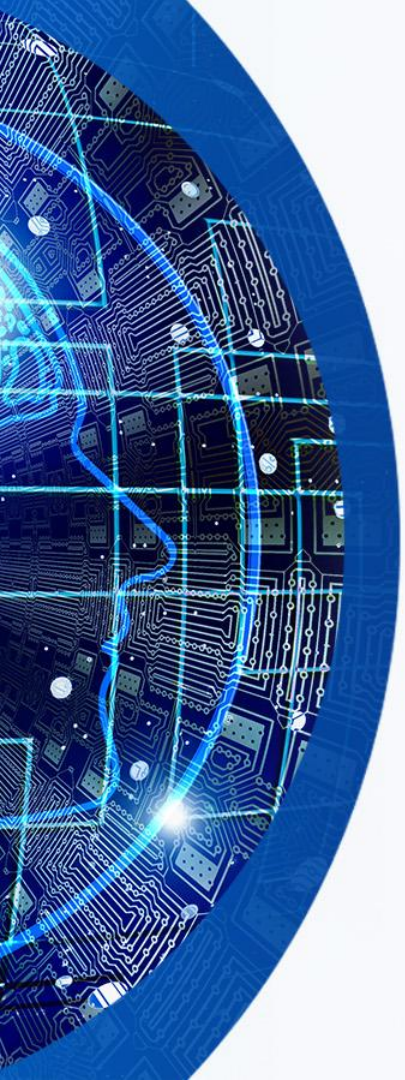
Descriptive
Merely describes the goods/services

Generic
Names of products they seek to identify



Non-registrable marks

- Immoral, deceptive, scandalous
- Flags, coats of arms, emblems
- Names, portraits, signatures
- Shapes that may be necessitated by technical factors or by the nature of the goods themselves or factors that affect their intrinsic value
- Colors, unless defined by a given form
- Misleading
- Generic
- Customary to trade

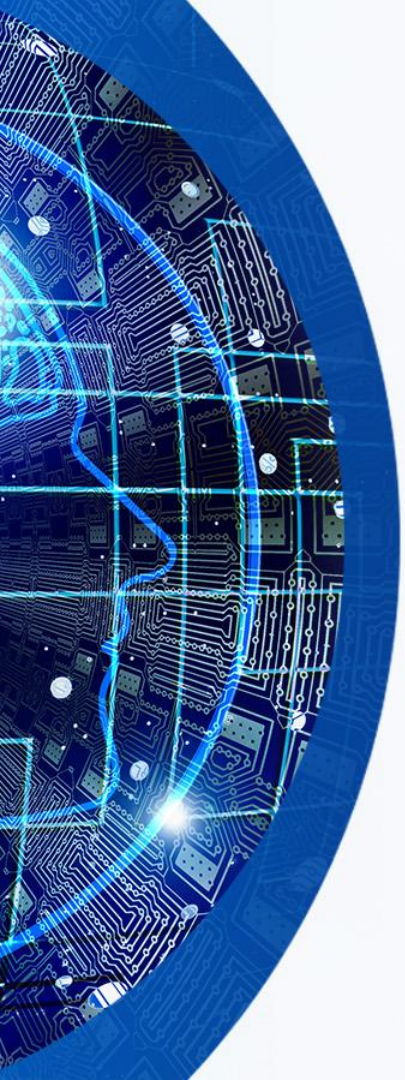


Benefits

A trademark protects a business' brand identity in the marketplace. Registration of it gives the owner the exclusive rights to prevent others from using or exploiting the mark in any way. Aside from being a source-identifier, differentiator, quality indicator, and an advertising device, a protective mark may also bring another stream of income to the owner through licensing or franchising.

Eligibility

The Intellectual Property Code of the Philippines prescribes grounds for non-registrability. The Intellectual Property Code of the Philippines, Section 123 fully explains the information about trademark. Generally, the **distinctiveness** of the mark is the key point of consideration.



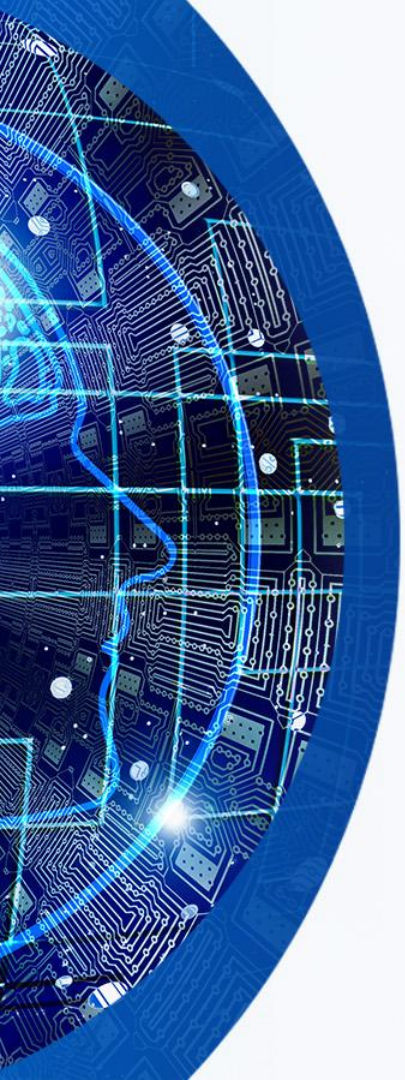
Term of Protection

A trademark can be protected in perpetuity if regularly monitored and properly maintained. The period of protection is ten (10) years from the date of registration and is renewable for a period of ten (10) years at a time

Copyright

- legal protection extended to the owner of the rights in an original work that one has created. “Original work” refers to every production in the literary, scientific and artistic domain.





How is Copyright acquired?

Works are protected by the sole fact of their creation, irrespective of the mode or form of expression, as well as their content, quality and purpose.

Literary and Artistic Works



(a) Books, pamphlets, articles and other writings;

(b) Periodicals and newspapers;



(c) Lectures, sermons, addresses, dissertations prepared for oral delivery, whether or not reduced in writing or other material form;



(d) Letters;



(e) Dramatic or dramatico-musical compositions; choreographic works or entertainment in dumb shows;

Literary and Artistic Works



(f) Musical compositions, with or without words;



(g) Works of drawing, painting, architecture, sculpture, engraving, lithography or other works of art; models or designs for works of art;



(h) Original ornamental designs or models for articles of manufacture, whether or not registrable as an industrial design, and other works of applied art;

Literary and Artistic Works



(l) Audiovisual works and cinematographic works and works produced by a process analogous to cinematography or any process for making audio-visual recordings;



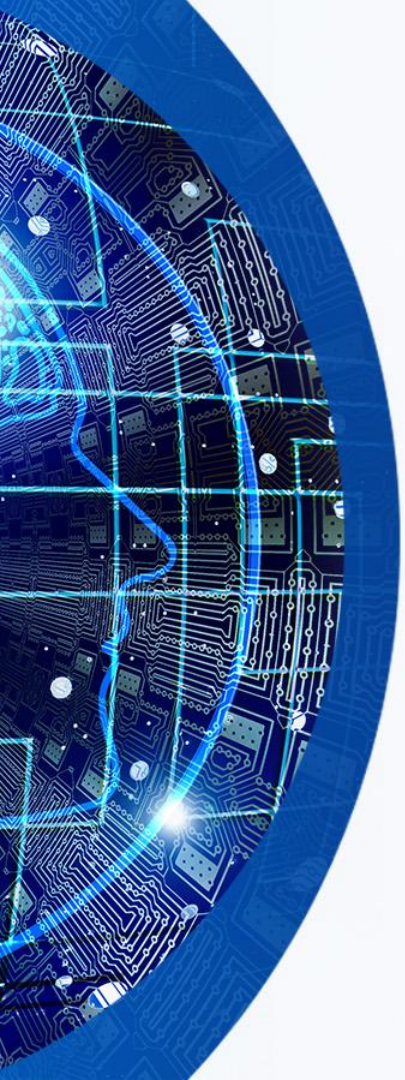
(m) Pictorial illustrations and advertisements;



(n) Computer programs; and

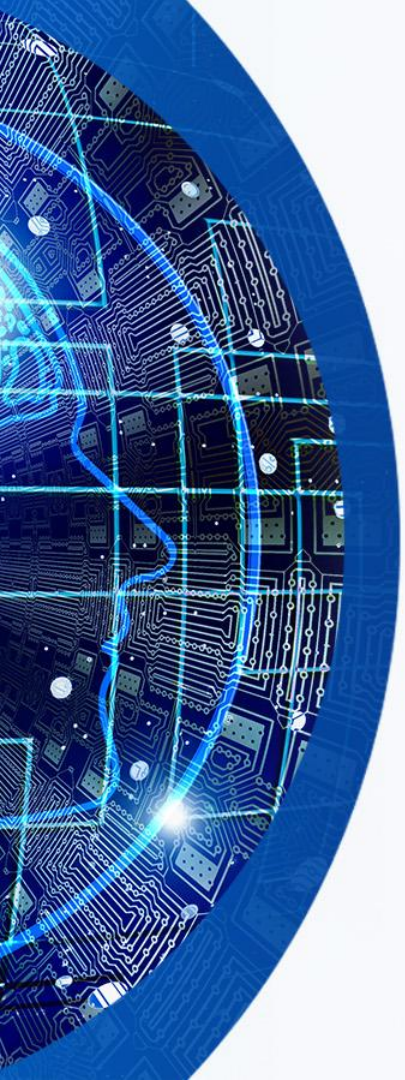


(o) Other literary, scholarly, scientific and artistic works.



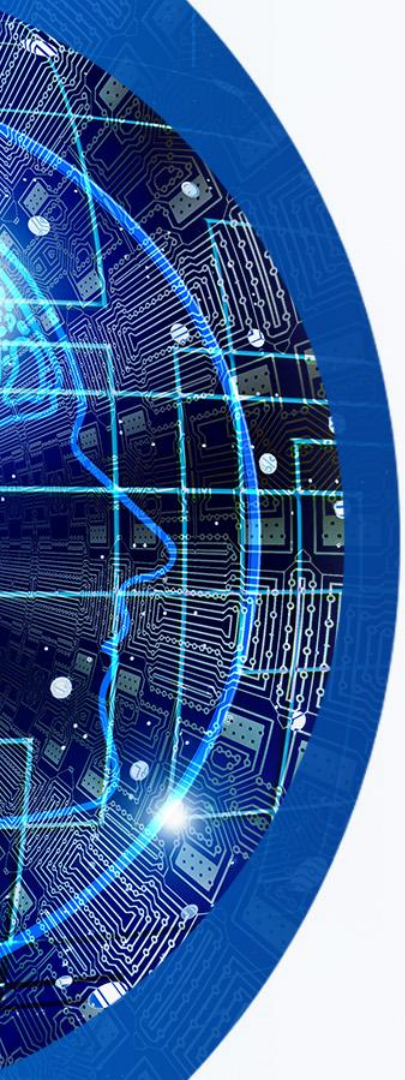
Works not protected (Unprotected subject matter)

- Ideas
- Procedure
- System
- Method of operation
- Concept
- Principle
- Discovery
- Mere data
- News and other miscellaneous facts
- Official text and any official translation



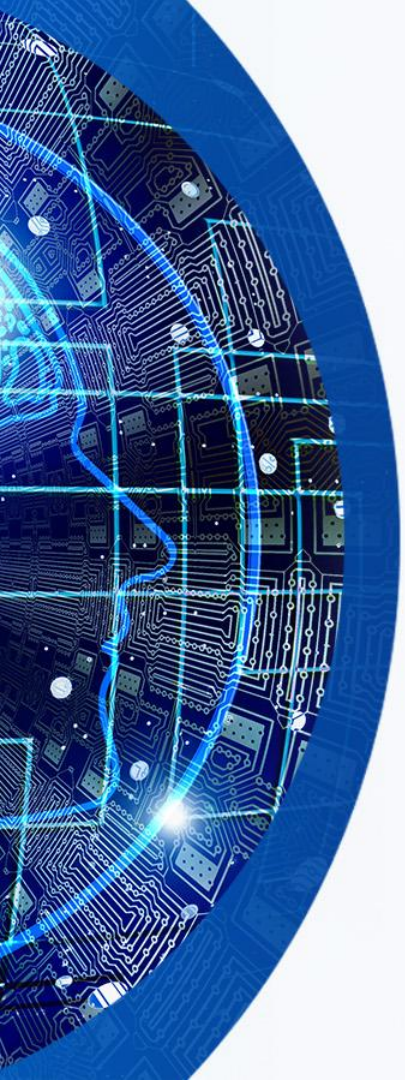
Works not protected (Works of the Government)

- But prior approval of the government agency/office is necessary for the use of such work for profit
- Agency/office may impose conditions or royalties except for rules, speeches, lectures, dissertations, addresses
- The author of speeches, lectures, addresses and dissertations shall have the exclusive right of making a collection of his works
- Government may receive and hold copyrights transferred by assignment, bequest, or otherwise



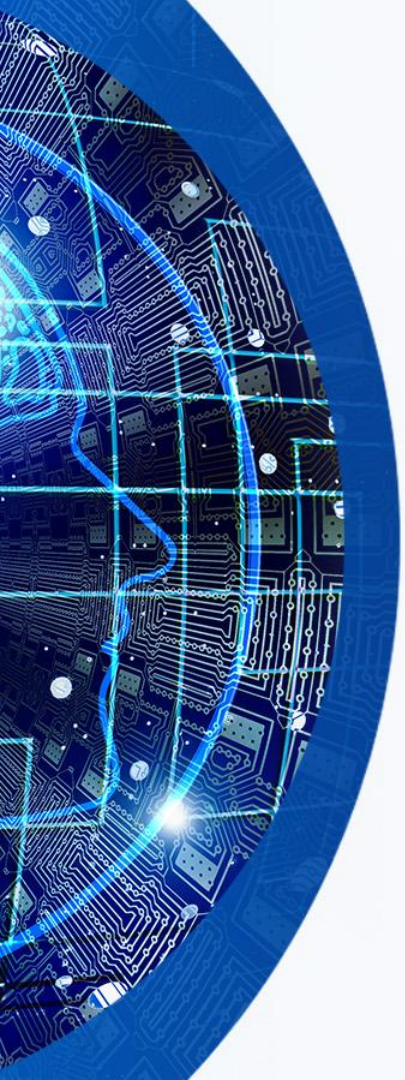
What rights does copyright provide?

Economic Rights	Moral Rights
• **Reproduce** • **Translate** • **Adapt** • **Exhibit/perform the work in public** • **Distribute** • **Broadcast** • **Communicate the work to the public**	• Rights which maintain a personal link between authors and their work • Be recognized as the author of the work • Object to any changes to the work, which could damage the author's honor or reputation



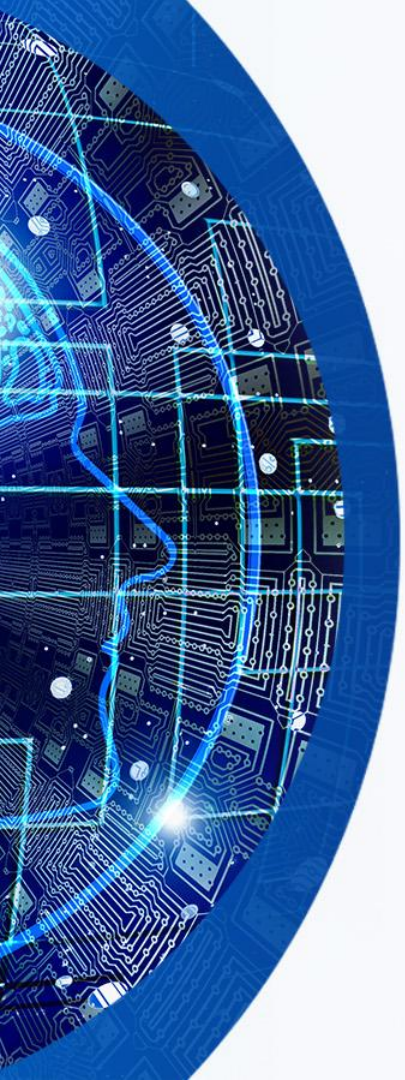
Benefits

The creators of works protected by copyright hold the exclusive right to use or authorize others to use the work on agreed terms. The right holder(s) of a work can authorize or prohibit: its reproduction in all forms, including print form and sound recording, public performance and communication to the public, broadcasting, translation into other languages, and adaptation, such as from a novel to a screenplay for a film.



Eligibility

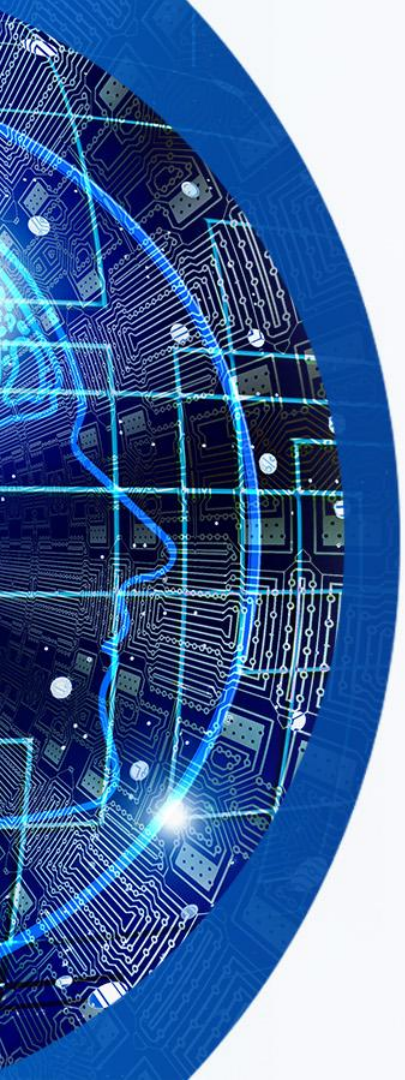
Works covered by copyright that can be deposited with IPOPHL are, but are not limited to: novels, poems, plays, reference works, newspapers, advertisements, computer programs, databases, films, musical compositions, choreography, paintings, drawings, photographs, sculpture, architecture, maps and technical drawings.



Term of Protection

The term of protection for copyright in literary and artistic works, and in derivative works is generally the lifetime of the author plus fifty (50) years. However, different rules may apply in:

- Works of joint authorship (life of last surviving + 50 years after death)
- Works of anonymous or pseudonymous works (50 years from publication or making)
- Photographic works
- Works of applied art
- Audio-visual works



Intellectual Property in EDUCATION and SPORTS

APRIL National Intellectual Property Rights Month

Trademark
name/symbol of shoe

Industrial Design
design of shoe



Patent
sole improvements for performance and comfort

Copyright
artwork and audiovisual creations used to publicize the shoe

INTELLECTUAL PROPERTY OFFICE OF THE PHILIPPINES

IPOPHL | www.ipophil.gov.ph